

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #16	CCRB Case #: 201508223	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Saturday, 09/19/2015 7:30 PM	Location of Incident: E181 St/Belmont Ave, § 87(2)(b) § 87(2)(b), 48th Pct SH, § 87(2)(b)	18 Mo. SOL 3/19/2017	Precinct: 48		
Date/Time CV Reported Sat, 09/19/2015 7:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/29/2015 12:19 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Kovarik	21898	952947	048 PCT
2. An officer			048 PCT
3. LT Edward Taveras	00000	921805	048 PCT
4. POM Ramon Rodriguez	13884	949563	048 PCT
5. POM Miguel Donovan	27770	950341	048 PCT
6. POM Luis Maldonado	00836	950810	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Lombardo	05261	949214	048 PCT
2. POM Justin Hoff	24506	953969	048 PCT
3. POM Frank Lucia	03932	930605	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ramon Rodriguez	Abuse: At East 181st Street and Belmont Avenue in the Bronx, PO Ramon Rodriguez questioned § 87(2)(b)	A . Unsubstantiated
B . POM Miguel Donovan	Discourtesy: At § 87(2)(b) in the Bronx and in front of the 48th Precinct stationhouse, PO Miguel Donovan spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Miguel Donovan	Force: At § 87(2)(b) in the Bronx, PO Miguel Donovan used physical force against § 87(2)(b)	C . Substantiated
D . An officer	Force: At § 87(2)(b) in the Bronx, an officer used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Discourtesy: At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)	E . Officer(s) Unidentified
F . An officer	Off. Language: At § 87(2)(b) in the Bronx, an officer made remarks to § 87(2)(b) based upon race.	F . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
G . POM Brian Kovarik	Force: At § 87(2)(b) in the Bronx, PO Brian Kovarik used pepper spray against § 87(2)(b)	G . Exonerated
H . POM Miguel Donovan	Discourtesy: At § 87(2)(b) in the Bronx, PO Miguel Donovan spoke discourteously to § 87(2)(b)	H . Unsubstantiated
I . LT Edward Taveras	Discourtesy: At § 87(2)(b) in the Bronx, Lt. Edward Taveras spoke discourteously to § 87(2)(b)	I . Unsubstantiated
J . POM Brian Kovarik	Abuse: At the 48th Precinct stationhouse, PO Brian Kovarik damaged § 87(2)(b)'s property.	J . Unsubstantiated
K . POM Brian Kovarik	Abuse: At the 48th Precinct stationhouse, PO Brian Kovarik refused to provide his name to § 87(2)(b)	K . Unsubstantiated
L . POM Brian Kovarik	Discourtesy: At the 48th Precinct stationhouse, PO Brian Kovarik spoke discourteously to § 87(2)(b)	L . Unsubstantiated
M . POM Brian Kovarik	Discourtesy: At the 48th Precinct stationhouse, PO Brian Kovarik spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . POM Brian Kovarik	Off. Language: At § 87(2)(b) in the Bronx, PO Brian Kovarik made remarks in front of § 87(2)(b) based upon race.	N . Unsubstantiated
O . POM Brian Kovarik	Discourtesy: At § 87(2)(b) in the Bronx, PO Brian Kovarik spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . POM Brian Kovarik	Discourtesy: En route to the 48th Precinct stationhouse, PO Brian Kovarik spoke discourteously in front of § 87(2)(b)	P . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(e)

the officers involved in this incident, PO Brian Kovarik, PO Matthew Lombardo, Lt. Edward Taveras, PO Ramon Rodriguez, PO Justin Hoff, PO Miguel Donovan and PO Luis Maldonado, all from the 48th Precinct, were driving around in the confines of the precinct aware that they might encounter a large group § 87(2)(b). The officers stated that while they were on patrol they observed a group of approximately 100 individuals in the streets in the vicinity of East 180th Street and Belmont Avenue in the Bronx and that they were told to disperse and that they dispersed into groups of 30 or so.

PO Rodriguez and PO Hoff drove up to § 87(2)(b) when he was standing alone on the corner of East 181st Street and Belmont Avenue. PO Rodriguez began to ask § 87(2)(b) questions from inside his car (**Allegation A**). When PO Rodriguez began to exit his car to speak to § 87(2)(b) more, § 87(2)(b) ran away. § 87(2)(b) ran from East 181st Street and Belmont Avenue until § 87(2)(b) with the officers pursuing him. PO Donovan was the first officer to catch up to § 87(2)(b). PO Donovan allegedly said, “You love running, motherfucker” (**Allegation B**) while throwing § 87(2)(b) to the ground and also punching § 87(2)(b) in the face (**Allegation C**). PO Kovarik and PO Lombardo then joined PO Donovan in apprehending § 87(2)(b). § 87(2)(b) alleged that force was used on him, which included kicking his legs and face, but did not see which officer took those actions (**Allegation D**). Multiple officers also allegedly said “this motherfucker,” “you black motherfucker” and “you bastard” to § 87(2)(b) while they were handcuffing him (**Allegation E, Allegation F**). During the apprehension, PO Kovarik used pepper spray (**Allegation G**). § 87(2)(b)'s father, § 87(2)(b) came to the scene and began to ask what happened. PO Donovan allegedly told § 87(2)(b) “Back the fuck up” and “Get the fuck out of here” (**Allegation H**), and Lt. Taveras allegedly said, “Just back the fuck up for the moment” and “Go to the fucking precinct. Go to the fucking 4-8. Get the fuck out of here” (**Allegation I**).

§ 87(2)(b) was transported to the 48th Precinct stationhouse. When being placed in the vehicle and taken out of the vehicle, PO Donovan allegedly said, “Shut the fuck up,” “Get your ass inside,” “Get the fuck out of the car,” and “I don’t give a fuck” to § 87(2)(b) (**within Allegation B**). While being searched at the stationhouse in front of the desk, PO Kovarik allegedly cut the straps to § 87(2)(b)'s backpack while it was still on his back and he was in handcuffs (**Allegation J**). § 87(2)(b) arrived at the 48th Precinct stationhouse and spoke to PO Kovarik. PO Kovarik allegedly refused to provide his name to § 87(2)(b) (**Allegation K**). EMS came to the 48th Precinct stationhouse to treat § 87(2)(b) and § 87(2)(b) requested to go to the hospital. § 87(2)(b) was rolled out of the stationhouse on a stretcher and when § 87(2)(b) saw this he tried to speak to § 87(2)(b). PO Kovarik allegedly told § 87(2)(b) “Back the fuck up” (**Allegation L**). § 87(2)(b) asked the EMS to loosen up his neck brace and in response PO Kovarik allegedly either said, “Oh now you’re complaining, motherfucker?” or “This motherfucker is complaining now?” (**Allegation M**).

At § 87(2)(b), PO Kovarik spoke to an unidentified officer who was present with another prisoner and allegedly said to that officer, “These black motherfuckers in the Bronx are acting up” (**Allegation N**). § 87(2)(b) s mother, § 87(2)(b) came to the hospital and tried to speak to § 87(2)(b) but PO Kovarik got into an argument with her because she did not have a pass from the desk officer to see him. PO Kovarik allegedly used the word “fuck” when speaking to § 87(2)(b) (**Allegation O**). § 87(2)(b) s step father, § 87(2)(b) was also present at the hospital with § 87(2)(b) and showed PO Kovarik his § 87(2)(b) badge. When § 87(2)(b) was released from the hospital, PO Frank Lucia, from the 48th Precinct, transported § 87(2)(b) and PO Kovarik back to the 48th Precinct stationhouse. During this car ride, PO Kovarik allegedly said in conversation with PO Lucia, “Tell me how this motherfucker came to the hospital and popped out a badge. How is that supposed to help his son?” (**Allegation P**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was arrested and charged with § 87(2)(b) as a result of this incident. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

This case has partial video evidence, a SnagIt copy of which has been placed below. The SnagIt video can be found in Board Review 19. Please note that the full video can be found at Board Review 32 and the transcriptions of this video can be found at Board Review 31.



§ 87(2)(b).mp4

This case is over 90 days old because of delays in being able to schedule PO Donovan who was originally scheduled for December 17, 2015 but then did not appear, was rescheduled for December 22, 2015 but did not receive that notification, was rescheduled for December 30, 2015 and that appearance was canceled due to PO Holder’s funeral and then had to be rescheduled for January 15, 2016 because he was on vacation before then.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to the ongoing criminal case stemming from this arrest.
- As of January 27, 2016, Neither § 87(2)(b) nor § 87(2)(b) have filed a notice of claim with the NYC Comptroller’s Office (Board Review 25).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (Board Review 26).
- PO Kovarik has been a member of the service for three years. He has had three prior CCRB complaints against him § 87(2)(g). No allegation against him has been substantiated.
- Lt. Taveras has been a member of the service for 17 years. He has had nine prior CCRB complaints against him § 87(2)(g). No allegation against him has been substantiated.
- PO Rodriguez has been a member of the service for five years. He has had two prior CCRB complaints, § 87(2)(g), both of which have been closed as complainant uncooperative.
- PO Donovan has been a member of the service for four years. He has had four prior CCRB complaints against him § 87(2)(g). In 201301780, a frisk was substantiated against him; the CCRB recommended charges and the NYPD issued him instructions.
- PO Maldonado has been a member of the service for four years. This is his first CCRB complaint.

Potential Issues

- § 87(2)(b) was apprehended in front of a building that did not have cameras. The CCRB field team performed field work on § 87(2)(b) and obtained video footage from the buildings in front of and behind the building that § 87(2)(b) was apprehended in front of. Neither of these buildings had cameras that captured the incident. Video footage from § 87(2)(b) only shows § 87(2)(b) running from officers with PO Donovan, PO Kovarik, PO Lombardo and then eventually PO Hoff running after him, in that order (Board Review 19, Snagit Clip above).
- § 87(2)(b) [Last name unknown] is a witness who was on the street when § 87(2)(b) was apprehended and called § 87(2)(b) to inform him that § 87(2)(b) was being arrested. § 87(2)(b) gave the CCRB § 87(2)(b) Unknown's phone number. Besides his initial phone statement, § 87(2)(b) Unknown did not want to be contacted by the CCRB after providing his initial phone statement.

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Donovan stated that he was the first officer to grab § 87(2)(b) which is supported by video evidence showing him as the first officer running after § 87(2)(b) § 87(2)(b) remembered the voice of the first officer that grabbed him and alleged multiple discourteous statements towards that voice. § 87(2)(g)

- § 87(2)(b) stated that he could not see which officers were using force against him because he was facing the ground and his hooded sweatshirt was over his head, thus preventing him from attributing any actions to any particular officer. § 87(2)(b) also could not say which officers were saying the alleged offensive language or discourteous statements because he was only able to hear different voices saying those statements. Additionally, no officer admitted to using the alleged force or making the alleged statements towards § 87(2)(b) § 87(2)(g)
- Although PO Donovan denied speaking to § 87(2)(b) on the scene, PO Donovan matched the description provided by § 87(2)(b) § 87(2)(g).
- Although Lt. Taveras did not remember § 87(2)(b) coming to the scene and denied making the alleged statements towards him, Lt. Taveras was the only officer wearing a white shirt on the scene and § 87(2)(b) provided a name to the CCRB as “Travella” which is close to “Taveras.” § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- **Abuse of Authority:** The command log and PO Kovarik’s memo book document that § 87(2)(b) was strip searched and that Lt. Taveras approved the strip search (Board Review 07, Board Review 29). However, § 87(2)(b) did not allege that any layers of clothing were removed from him while the officers were searching him and stated that he was only searched on the scene and in front of the desk, even after probing questions were asked during a follow up call (Board Review 18). § 87(2)(g)

Allegation A – Abuse of Authority: At East 181st Street and Belmont Avenue in the Bronx, PO Ramon Rodriguez questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that he was walking home alone from a barbershop and that he stood on the corner outside of a corner store located at East 181st Street and Belmont Avenue before he went into the corner store located on that corner. PO Rodriguez asked § 87(2)(b) where he was going and then asked § 87(2)(b) if he had identification on him. PO Rodriguez then opened the car door to exit the car and § 87(2)(b) ran away from him. § 87(2)(b) denied that he was ever with a group § 87(2)(b) (Board Review 01).

§ 87(2)(g)

PO Rodriguez stated that he observed § 87(2)(b) walk away from a crowd § 87(2)(b) looking back while he was walking. PO Rodriguez observed a heavy object in § 87(2)(b)’s front pocket. The object had sharp outlines that PO Rodriguez could see

fuck up. Get in. Get your ass inside.” Then, when the car arrived at the stationhouse, PO Donovan opened the door and told § 87(2)(b) “Get the fuck out of the car.” § 87(2)(b) responded that he could not see, and PO Donovan said, “I don’t give a fuck” and “Didn’t I tell you to get out of the fucking car?” (Board Review 01).

PO Donovan denied saying, “You love running, motherfucker” to § 87(2)(b) when he caught up to him. PO Donovan did not recall if he walked § 87(2)(b) to the police car but denied telling § 87(2)(b) to “shut the fuck up” or get his “ass” inside the car. PO Donovan drove the police car to the stationhouse and did not take § 87(2)(b) out of the police car at the stationhouse because he was in the driver’s seat (Board Review 17).

PO Kovarik stated that he and PO Donovan brought § 87(2)(b) into the stationhouse but stated the neither he nor any other officer cursed at § 87(2)(b) during the incident (Board Review 10). PO Lombardo, who had been thoroughly pepper sprayed and was very disoriented after that happened, did not know if he went to the stationhouse in the same police car as § 87(2)(b) (Board Review 11).

§ 87(2)(g)
Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Force: At § 87(2)(b) in the Bronx, PO Miguel Donovan used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) ran away from the officers from East 181st Street and Belmont Avenue to § 87(2)(b). § 87(2)(g)

§ 87(2)(b) alleged that PO Donovan grabbed him and immediately brought him down to the ground, and that when he was on the ground he felt a couple of punches to his face but that he did not know who these punches were coming from because his face was facing the ground and his hooded sweatshirt was over his head (Board Review 01).

An eyewitness named § 87(2)(b) [Last name unknown], who observed the incident from across the street, stated that the officer who grabbed § 87(2)(b) first, identified by the investigation as PO Donovan, punched § 87(2)(b) in the face about three times after § 87(2)(b) started wiggling away from him. § 87(2)(b) was not sure if § 87(2)(b) was pushed up against a fence or if he was brought to the ground, or both, during the interaction (Board Review 08).

PO Donovan stated that he grabbed § 87(2)(b) and told him to put his hands behind his back but instead, § 87(2)(b) grabbed onto a metal fence and refused to let go despite being told to put his hands behind his back. PO Donovan stated that all he did was grab § 87(2)(b)’s arms to try to get his hands off of the fence. Eventually the officers were able to grab § 87(2)(b)’s hands off of the fence but then they all fell to the ground. Once on the ground, PO Donovan merely pulled § 87(2)(b)’s arms from underneath his body. PO Donovan denied punching § 87(2)(b) in the face or anywhere on his body (Board Review 17).

Photos that § 87(2)(b) took at the hospital of § 87(2)(b) shows a laceration to § 87(2)(b)'s right eyebrow ridge but § 87(2)(b) did not know what caused this laceration (Board Review 04, Board Review 05, Board Review 06). § 87(2)(a) PHL § 18(6)

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] it is recommended that **Allegation C** be closed as **substantiated**.

§ 87(2)(b) alleged that he was immediately brought to the ground he heard officers saying, “This motherfucker,” “You black motherfucker” and “You bastard” and that different voices were making these statements. § 87(2)(b) also stated that he felt one kick to his legs, and two kicks to his face, in addition to the above mentioned punches to the face § 87(2)(g) (Board Review 01).

CCRB – Confidential

No witness statements corroborated § 87(2)(b)'s account or were able to identify the officers who used the alleged discourteous language or force against § 87(2)(b) (Board Review 08).

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E and F** be closed as **officers unidentified**.

Allegation G – Force: At § 87(2)(b) in the Bronx, PO Brian Kovarik used pepper spray against § 87(2)(b)

Although § 87(2)(b) denied that he moved his body away from the officers or refused to give the officers his hands (Board Review 01), a seemingly independent witness, § 87(2)(b) who was observing the incident from across the street, stated that § 87(2)(b) tried to wiggle away from the officers (Board Review 08). PO Kovarik, PO Lombardo, PO Donovan, and PO Hoff, the only officers who stated they were present for the apprehension of § 87(2)(b) all stated that § 87(2)(b) refused to give the officers his hands and that he resisted the officers and that pepper spray was used before § 87(2)(b) was able to be placed into handcuffs (Board Review 10, Board Review 11, Board Review 17, Board Review 15).

PO Kovarik stated that he used pepper spray on § 87(2)(b) while he was resisting the officers and before he was in handcuffs, and that he used the pepper spray in the interest of § 87(2)(b) because he believed that pepper spray was something that would likely overcome and end § 87(2)(b)'s resistance (Board Review 10).

NYPD Patrol Guide Procedure 212-95 states that officers may use pepper spray in order to affect an arrest of a resisting suspect (Board Review 24).

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **exonerated**.

Allegation H – Discourtesy: At § 87(2)(b) in the Bronx, PO Miguel Donovan spoke discourteously to § 87(2)(b)

Allegation I – Discourtesy: At § 87(2)(b) in the Bronx, Lt. Edward Taveras spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when he got to the scene he saw § 87(2)(b) being held by an officer. § 87(2)(b) approached § 87(2)(b) but did not get too close and began to ask him what was wrong. PO Donovan then approached § 87(2)(b) and said, “Back the fuck up. Back the fuck up. Get the fuck out of here. Get the fuck out of here.” § 87(2)(b) tried to explain to PO Donovan that § 87(2)(b) was his child but PO Donovan responded by saying “Well, back the fuck up. Just back the fuck up.” Lt. Taveras then came over and asked § 87(2)(b) “That’s your son?” § 87(2)(b) responded that it was his son and Lt. Taveras responded, “Just back the fuck up for the moment.” § 87(2)(b) stood around for about two or three minutes but no

officers told him anything. § 87(2)(b) then approached Lt. Taveras and asked him what was going on. Lt. Taveras said, “Just go to the fucking precinct. Go to the fucking 4-8. Get the fuck out of here” (Board Review 09).

The seemingly independent witness, § 87(2)(b) stated that he heard an officer, who he described as a tall white male, say, “Get the fuck back” and “Get the fuck out of here” to § 87(2)(b) when he walked up to the officers (Board Review 08). However, neither PO Donovan nor Lt. Taveras are white males § 87(2)(g)

Lt. Taveras and PO Donovan both do not recall seeing § 87(2)(b) on the scene. Lt. Taveras denied that he made any of the statements alleged by § 87(2)(b) to § 87(2)(b) or that he heard any other officers make the statements alleged by § 87(2)(b) (Board Review 12). PO Donovan denied that he spoke to anyone in the crowd, including § 87(2)(b) and that he did not remember an individual coming to the scene and asking about § 87(2)(b) PO Donovan denied making any of the statements alleged by § 87(2)(b) and denied that he heard any other officer make the statements alleged by § 87(2)(b) (Board Review 17).

PO Kovarik stated that PO Donovan had informed him that § 87(2)(b) had come to the scene but PO Kovarik had not seen § 87(2)(b) on the scene. PO Kovarik did not ask PO Donovan if he had a conversation with § 87(2)(b) (Board Review 10). PO Lombardo sat in a police car, completely disoriented after he had been pepper sprayed and did not see or hear § 87(2)(b) come to the scene at any point (Board Review 11). PO Maldonado remembered § 87(2)(b) coming to the scene and stated that he spoke to § 87(2)(b) first but that § 87(2)(b) continued to walk towards other officers and speak with other officers on the scene, but he did not know which officers those were. PO Maldonado denied making any of the statements alleged by § 87(2)(b) himself, and denied hearing another officer make any of the alleged statements (Board Review 13). PO Rodriguez stated he was not aware of § 87(2)(b) coming to the scene or any officers having a conversation with § 87(2)(b) (Board Review 14). PO Hoff stated that he was not aware of § 87(2)(b) coming to the scene and speaking to officers. PO Hoff heard Lt. Taveras speaking to people but he did not remember what he heard Lt. Taveras saying and he did not know who Lt. Taveras was speaking to (Board Review 15).

§ 87(2)(g)

Therefore, it is recommended that **Allegations H and I** be closed as **unsubstantiated**.

Allegation J – Abuse of Authority: At the 48th Precinct stationhouse, PO Brian Kovarik damaged § 87(2)(b) s property.

§ 87(2)(g)

§ 87(2)(b) alleged that as he was in front of the desk at the 48th Precinct stationhouse in handcuffs, PO Kovarik cut the straps to his backpack while it was on his back (Board Review 01).

PO Kovarik stated that § 87(2)(b) was wearing a backpack when he was handcuffed and that his backpack had to be removed before he was transported in the car to the 48th Precinct stationhouse. PO Kovarik stated that he cut § 87(2)(b)'s backpack straps in order to remove the backpack from § 87(2)(b)'s back because he could not un-handcuff § 87(2)(b) to do so since he had been so resistant to the officers before being placed in handcuffs (Board Review 10).

No officer except for PO Hoff stated they observed or were aware of § 87(2)(b)'s backpack straps cut by an officer. PO Kovarik's statement was supported by PO Hoff's statement (Board Review 15).

§ 87(2)(g)
Therefore, it is recommended that **Allegation J** be closed as **unsubstantiated**.

Allegation K – Abuse of Authority: At the 48th Precinct stationhouse, PO Brian Kovarik refused to provide his name to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) alleged that he asked PO Kovarik for his name and that PO Kovarik responded by smirking. § 87(2)(b) then looked at PO Kovarik's name plate to obtain his name and said "Okay. No problem" and walked away without PO Kovarik ever verbally providing his name to § 87(2)(b) (Board Review 09).

PO Kovarik stated that when § 87(2)(b) asked him for his name, he verbally provided § 87(2)(b) with his name and shield number (Board Review 10).

§ 87(2)(g)
Therefore, it is recommended that **Allegation K** be closed as **unsubstantiated**.

Allegation L – Discourtesy: At the 48th Precinct stationhouse, PO Brian Kovarik spoke discourteously to § 87(2)(b)

Allegation M – Discourtesy: At the 48th Precinct stationhouse, PO Brian Kovarik spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that when he was at the stationhouse, he saw § 87(2)(b) being rolled out of the stationhouse on a stretcher. § 87(2)(b) walked towards § 87(2)(b) but PO Kovarik jumped in front of him and said, “Back the fuck up. Back the fuck up. He’s in my custody now” (Board Review 09). When § 87(2)(b) explained § 87(2)(b)’s interaction with PO Kovarik, § 87(2)(b) did not mention PO Kovarik using any profanity and only said that PO Kovarik would not give § 87(2)(b) any information or tell him what hospital § 87(2)(b) was being brought to (Board Review 01).

§ 87(2)(b) alleged that as he was being brought out of the stationhouse by the EMTs, he asked an EMT if he could loosen the neck brace for him. PO Kovarik then either said, “This motherfucker is complaining now?” or “Now you’re complaining, motherfucker?” § 87(2)(b) did not mention that he heard § 87(2)(b) complain about his neck brace and did not mention that PO Kovarik said those statements to § 87(2)(b).

PO Kovarik disputed making any of the alleged statements towards either individual. PO Kovarik stated that § 87(2)(b) observed § 87(2)(b) being wheeled out of the stationhouse on a backboard with a neck brace on and that § 87(2)(b) tried to get into contact with § 87(2)(b). PO Kovarik explained to § 87(2)(b) that he was on a backboard with a neck brace because he told EMS that he passed out. § 87(2)(b) continuously tried to come in contact with § 87(2)(b) which PO Kovarik could not allow since § 87(2)(b) was in police custody, so PO Kovarik told him, “He’s in our custody, at this point you cannot be in contact with him.” PO Kovarik did not remember if § 87(2)(b) complained of having the neck brace on him and he did not say, “Now you’re complaining motherfucker” or “This motherfucker is complaining now.” (Board Review 10).

§ 87(2)(g)
Therefore, it is recommended that **Allegations L and M** be closed as **unsubstantiated**.

Allegation N – Offensive Language: At § 87(2)(b) in the Bronx, PO Brian Kovarik made remarks in front of § 87(2)(b) based upon race.
Allegation P – Discourtesy: En route to the 48th Precinct stationhouse, PO Brian Kovarik spoke discourteously in front of § 87(2)(b)

§ 87(2)(g)
.

§ 87(2)(b) alleged that when he arrived at § 87(2)(b), PO Kovarik spoke to another officer who was at the hospital with another prisoner and said, “These black motherfuckers in the Bronx are acting up” (Board Review 01). PO Kovarik denied making such a statement and did not remember seeing another officer at the hospital with another prisoner (Board Review 10). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) also alleged that when he and PO Kovarik were being brought back to the 48th Precinct stationhouse by PO Lucia, PO Kovarik spoke to PO Lucia in the car and said, “Tell me how this motherfucker came to the hospital and popped out a badge. How’s that supposed to help his son?” in reference to § 87(2)(b) showing PO Kovarik his § 87(2)(b) badge. PO Kovarik denied saying that statement. PO Lucia stated that he did not have a conversation with PO Kovarik in the car and stated that PO Kovarik did not make that statement (Board Review 16).

§ 87(2)(g)

Therefore, it is recommended that **Allegations N and P** be closed as **unsubstantiated**.

Allegation O – Discourtesy: At § 87(2)(b) in the Bronx, PO Brian Kovarik spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that when she first went to the hospital, PO Kovarik told her that she could not be with § 87(2)(b) but did not explain that she needed to get a pass in order to see him. § 87(2)(b) believed that PO Kovarik used the word “fuck” once while speaking with her but she did not want to misquote what he said. § 87(2)(b) thought that PO Kovarik might have said, “He’s in custody. He’s being charged as an adult and you guys can’t fucking be back here.” Only § 87(2)(b) and PO Kovarik were in the room at the time PO Kovarik said that to her (Board Review 02).

§ 87(2)(b) spoke about § 87(2)(b)’s conversation with PO Kovarik regarding § 87(2)(b) being charged as an adult but did not say that PO Kovarik cursed at § 87(2)(b) (Board Review 03). § 87(2)(b) did not say that PO Kovarik used profanities while speaking to § 87(2)(b) (Board Review 01).

PO Kovarik acknowledged that he told § 87(2)(b) “You can’t be here” but stated that he did not curse in that statement and did not ever curse or use the word “fuck” when speaking with § 87(2)(b) (Board Review 10).

§ 87(2)(g)

Therefore, it is recommended that **Allegation O** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[illegible]

Squad: _____

Investigator: _____
Signature Print Date

Squad Leader: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature Print Date